

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Gregory Joss	Team: Team # 3	CCRB Case #: 201107924	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 06/18/2011 6:00 PM	Location of Incident: Troy Avenue and Union Street	18 Mo. SOL 12/18/2012	Precinct: 71		
Date/Time CV Reported Sat, 06/18/2011 8:06 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 06/18/2011 8:06 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Mobeen Yasin	26696	948285	PBBS
2. Officers			

Officer(s)	Allegation	Investigator Recommendation
A . POM Mobeen Yasin	Abuse: Officer Mobeen Yasin stopped § 87(2)(b) and § 87(2)(b)	A . Complainant Uncooperative
B . POM Mobeen Yasin	Abuse: Officer Mobeen Yasin searched § 87(2)(b)	B . Complainant Uncooperative
C . Officers	Abuse: Officers stopped § 87(2)(b) and § 87(2)(b)	C . Complainant Uncooperative
D . Officers	Abuse: Officers searched § 87(2)(b) and § 87(2)(b)	D . Complainant Uncooperative
E . POM Mobeen Yasin	Abuse: Officer Mobeen Yasin searched the car in which § 87(2)(b) was an occupant.	E . Complainant Uncooperative
F . Officers	Abuse: Officers searched the car in which § 87(2)(b) was an occupant.	F . Complainant Uncooperative

Case Summary

On June 18, 2011, § 87(2)(b) (identified through investigation) filed this complaint with the Civilian Complaint Review Board via the call processing system. On June 18, 2011, § 87(2)(b) and § 87(2)(b) each filed duplicate complaints (CCRB case nos. 201107952 and 201107956) with the CCRB via the call processing system. On June 21, 2011, § 87(2)(b) provided a phone statement to the CCRB and on June 22, 2011, § 87(2)(b) provided a phone statement to the CCRB. The following is a composite of those two statements.

On June 18, 2011 at approximately 6:00PM in the vicinity of Troy Avenue and Union Street in Brooklyn, § 87(2)(b), § 87(2)(b), and § 87(2)(b) and his § 87(2)(b) son, § 87(2)(b) were leaving a barbeque to go to the store. While they were sitting in § 87(2)(b)'s parked car, PO Mobeen Yasin of Patrol Borough Brooklyn South (identified through investigation), approached the vehicle. PO Yasin was on foot and in uniform. PO Yasin told § 87(2)(b) that he smelled "weed" and allegedly asked § 87(2)(b) for his identification and to step out of the vehicle (**Allegation A**). § 87(2)(b) became agitated and said, "This is bullshit." PO Yasin then went to the rear of the vehicle and allegedly pulled § 87(2)(b) out of the car by his bicep and proceeded to search his pockets (**Allegation B and within Allegation A**). This further infuriated § 87(2)(b) who then exited the vehicle and said to PO Yasin, "What's your problem man?" PO Yasin again stated that he smelled "weed." § 87(2)(b) objected to the accusation and told PO Yasin that his partner, who § 87(2)(b) identified as PO Redman, a white male in uniform, had been standing near the vehicle the entire time and that no one was smoking. PO Yasin called for back up and at least three additional marked police vehicles responded. § 87(2)(b), § 87(2)(b), and § 87(2)(b) were allegedly brought to the rear of § 87(2)(b)'s vehicle and searched by unidentified uniformed officers (**Allegations C and D**). While the occupants were at the rear of the car, PO Yasin and unidentified officers allegedly searched § 87(2)(b)'s vehicle (**Allegations E and F**). Nothing was recovered from the vehicle or its occupants. § 87(2)(b) and § 87(2)(b) were both issued summonses for § 87(2)(b) as a result of this incident.

On June 22, 2011, § 87(2)(b) established contact with the CCRB via telephone and provided the name, Yasin, from the summons he was issued. CTS indicated that PO Mobeen Yasin is assigned to Patrol Borough Brooklyn South and that there is no other active NYPD officer with the name Yasin. CTS also lists a PO Thomas Redmond, a white male, assigned to Patrol Borough Brooklyn South; § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

On June 22, 2011, contact was established with § 87(2)(b) via telephone. Both the mediation and investigative processes were explained to § 87(2)(b) but he was not sure which avenue he wished to pursue. § 87(2)(b) was told he could take some time to think about it and then contact the CCRB with his decision. On June 22, 2011, the undersigned investigator established contact with § 87(2)(b) via telephone. Both the mediation and investigative processes were explained to § 87(2)(b) and he opted for investigation § 87(2)(b) § 87(2)(b) and § 87(2)(b) were scheduled for an appointment at the CCRB on July 1, 2011. On June 27, 2011, the undersigned investigator established contact with § 87(2)(b) and explained to him that his case was no longer eligible for mediation. § 87(2)(b) was scheduled for an appointment at the CCRB on July 6, 2011. On July 1, 2011, § 87(2)(b) telephoned the CCRB and requested to reschedule his appointment because § 87(2)(b) § 87(2)(b). § 87(2)(b)

§ 87(2)(b) was told he could contact the CCRB in two to three weeks time to schedule an appointment. On July 6, 2011, § 87(2)(b) failed to appear at the CCRB for his scheduled appointment. On July 6, 2011, the undersigned investigator established contact with § 87(2)(b) via telephone. § 87(2)(b) wished to reschedule his missed appointment and stated he would call the CCRB the following day when he knew his schedule. On July 7, 2011 and July 12, 2011, the undersigned investigator placed a call to § 87(2)(b) and each time an unknown individual answered the phone and hung up without saying anything. On July 12, 2011, a missed appointment letter was sent to § 87(2)(b) and was not returned by the United States Postal Service. On August 3, 2011, the undersigned investigator placed a call to § 87(2)(b) and left a voicemail.

On July 15, 2011, contact was established with § 87(2)(b) via telephone and he and § 87(2)(b) were scheduled to appear at the CCRB on July 25, 2011; however, § 87(2)(b) and § 87(2)(b) failed to appear for their appointment. On July 25, 2011, the undersigned investigator placed a call to § 87(2)(b) and an automated response stated that the person dialed was unavailable. On July 27, 2011, the undersigned investigator placed a call to § 87(2)(b). There was no answer and no answering service. On July 25, 2011, a missed appointment letter was mailed to § 87(2)(b) and was not returned by the United States Postal Service. In addition, on August 3, 2011, a final please call email was sent to § 87(2)(b) to which he did not respond.

In his message on the call processing system, § 87(2)(b) provided his mailing address, but no name or contact number. § 87(2)(b) provided the CCRB with § 87(2)(b)'s name in his phone statement on June 22, 2011. A LexisNexis search confirmed § 87(2)(b)'s mailing address and provided three contact numbers associated with his address. On July 6, 2011, the undersigned investigator attempted to contact § 87(2)(b) at all three numbers with negative results. On June 22, 2011 and July 6, 2011, please call letters were mailed to § 87(2)(b) and were not returned by the United States Postal Service.

According to a search of the New York City Department of Correction website conducted on September 1, 2011, § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b) are not currently incarcerated. § 87(2)(g)

§ 87(2)(g)

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date